

24PSCV04174 24PSCV04174

County: los-angeles

Division: Civil Law and Motion

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Case Number: 24PSCV04174 Hearing Date: August 31, 2026 Dept: H

Envision WC MB Auto, LLC v.

Rivera et al.,

Case No. 24PSCV04174

ORDER ON PLAINTIFF'S EX PARTE

APPLICATION TO (1) CONTINUE TRIAL AND RELATED DATES AND (2) RE-FILE SUMMARY
JUDGMENT MOTION

Pending

before the Court is Plaintiff's ex parte application (1) to continue the trial date and related dates and (2) to permit re-filing of Plaintiff's motion for summary judgment. The Court has reviewed Plaintiff's application, as well as the accompanying declaration of Charles McKenna, which attaches an email from Defendants stating that they do not oppose a trial continuance but do oppose the re-filing of a summary judgment motion. For the reasons stated herein, the application is granted in part (i.e., the request to continue the trial and related dates) and denied in part (i.e., the request to re-file the motion for summary judgment). The Court will hear from the parties at the time of hearing regarding an appropriated continued trial date.

Plaintiff's

Request for a Trial Continuance

"A

party seeking a continuance of the date set for trial, whether contested or uncontested or stipulated to by the parties, must make the request . . . by a noticed motion or an ex parte application. . . , with supporting declarations.

The party must make the motion or application as soon as reasonably practical

once the necessity for the continuance is discovered.” (Cal. Rules of Court, rule 3.1332(b).)

“Although

continuances of trials are disfavored, each request for a continuance must be considered on its own merits. The court may grant a continuance only on an affirmative showing of good cause requiring the continuance. Circumstances that may indicate good cause include: . . .

(1)

The unavailability of an essential lay or expert witness because of death, illness, or other excusable circumstances;

(2)

The unavailability of a party because of death, illness, or other excusable circumstances;

(3)

The unavailability of trial counsel because of death, illness, or other excusable circumstances;

(4)

The substitution of trial counsel, but only where there is an affirmative showing that the substitution is required in the interests of justice;

(5)

The addition of a new party if:

(A)

The new party has not had a reasonable opportunity to conduct discovery and prepare for trial; or

(B)

The other parties have not had a reasonable opportunity to conduct discovery and prepare for trial in regard to the new party's involvement in the case;

(6) A

party's excused inability to obtain essential testimony, documents, or other material evidence despite diligent efforts; or

(7) A

significant, unanticipated change in the status of the case as a result of which the case is not ready for trial.

(Cal.

Rules of Court, rule 3.1332(c).)

“In

ruling on a motion or application for continuance, the court must consider all the facts and circumstances that are relevant to the determination. These may

include:

(1)

The proximity of the trial date;

(2)

Whether there was any previous continuance, extension of time, or delay of trial due to any party;

(3)

The length of the continuance requested;

(4)

The availability of alternative means to address the problem that gave rise to the motion or application for a continuance;

(5)

The prejudice that parties or witnesses will suffer as a result of the continuance; . . .

(7)

The court's calendar and the impact of granting a continuance on other pending trials;

(8)

Whether trial counsel is engaged in another trial;

(9)

Whether all parties have stipulated to a continuance;

(10)

Whether the interests of justice are best served by a continuance, by the trial of the matter, or by imposing conditions on the continuance; and

(11)

Any other fact or circumstance relevant to the fair determination of the motion or application."

(Cal.

Rules of Court, rule 3.1332(d).)

Having

considered the factors enumerated in Rule 3.1332, as well as the facts set forth in Plaintiff's declaration, the ex parte application to continue trial is GRANTED. In granting the application, the Court finds that the interests of justice are best served by a continuance, particularly given that Defendants do not oppose the continuance and are awaiting whether their insurer will pay on their claim for the subject vehicle.

At the

time of hearing, the Court will hear from the parties regarding an appropriate

continued trial date.

Plaintiff's

Request to Re-File Motion for Summary Judgment

Plaintiff

also seeks leave to file a second summary judgment motion. As a general matter, "[a] party shall not bring more than one motion for summary judgment against an adverse party to the action or proceeding." (Code Civ. Proc. § 437c, subd. (a)(4).) However, "on motion or application of any party and a showing of good cause, the court may grant leave for the moving party to bring an additional motion for summary judgment." (Id., subd. (a)(5).)

Here,

the Court determines that Plaintiff has not demonstrated good cause. Plaintiff seeks to file essentially the same motion, except that Plaintiff would acknowledge that Defendants were entitled to an offset to damages based on the insurance check proffered by Defendants in their opposition. It appears to the Court that Plaintiff essentially seeks a "do-over" to correct a strategic mistake (i.e., the failure to acknowledge the offset) rather than an opportunity to re-file the motion based on genuinely changed circumstances.

At

least on the present showing, Plaintiff's request to file a second motion for summary judgment is DENIED.